

Mt. B. Gangamma W/O. B Ayyappa vs B. Ayyappa S/O. Late Mallayya on 4 December, 2018

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH

DATED THIS THE 04TH DAY OF DECEMBER 2018

BEFORE

THE HON'BLE MR.JUSTICE B.A.PATIL

CIVIL PETITION NO.100113 OF 2017

BETWEEN

SMT. B. GANGAMMA W/O. B. AYYAPPA,
AGE:24 YEARS, OCC:HOUSEWIFE,
R/O. SHALIGANOURU,
TALUK:GANGAVATHI,
DISTRICT:KOPPAL-583212.

... PETITIONER

(BY SRI. M AMARE GOUDA, ADVOCATE)

AND

B. AYYAPPA S/O. LATE MALLAYYA,
AGE:27 YEARS,
R/O:SHRIDHARGADDE VILLAGE,
TQ:SHIRAGUPPA,
DIST:BELLARY-583121.

... RESPONDENT

(NOTICE SERVED)

THIS CIVIL PETITION IS FILED U/SEC.24 OF CPC, 1908,
PRAYING TO TRANSFER THE PETITION IN M.A.T.NO.5/2016
FILED UNDER SECTION 13(1-A) AND (1-B) OF HINDU
MARRIAGE ACT, FOR DIVORCE, PENDING BEFORE THE
COURT OF SENIOR CIVIL JUDGE AT SIRUGUPPA TO THE
COURT OF SENIOR CIVIL JUDGE AND JUDICIAL
MAGISTRATE FIRST CLASS, GANGAVATHI.

:2:

THIS CIVIL PETITION COMING ON FOR ADMISSION
THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The present petition has been filed under section 24 of CPC praying this Court to transfer M.A.T.No.5/2016 to the Senior Civil Judge and J.M.F.C., Court, Gangavathi.

2. I have heard the learned counsel for the petitioner-wife. Though notice issued and served on the respondent-husband, he remained absent.

3. It is the specific contention of the learned counsel for the petitioner-wife that the respondent-husband has filed M.A.T.No.5/2016 before the Senior Civil Judge, Siruguppa seeking divorce and the petitioner-wife has filed M.C.No.16/2017 before the Senior Civil Judge and JMFC Court, Gangavathi seeking restitution of conjugal rights. It is submitted that if these two cases are heard and decided separately, there is likelihood of conflict of decisions. It is further submitted that the petitioner-wife is having a female child and it is very difficult for her to spend Rs.500/- for traveling to attend the Court at Siruguppa on every date of hearing. It is further submitted by the learned counsel for the petitioner-wife that the petitioner is not having any independent source of income and her financial condition is also not good. On these grounds, he prayed to allow the petition.

4. I have carefully and cautiously gone through the submissions made by the learned counsel for the petitioner-wife and perused the records.

5. It is not in dispute that the respondent- husband has filed M.A.T.No.5/2016 seeking divorce and the petitioner-wife has filed M.C.No.16/2017 seeking restitution of conjugal rights. These two cases are pending in two different Courts. If the said cases are decided independently, then there is a likelihood of conflict of decisions. In order to avoid the conflict of decisions, it is just and necessary that both the cases have to be heard and decided together by the Single Court. Further, it is the specific contention of the petitioner-wife that she is living with a minor female child and it is very difficult for her to travel along with the said child and attend the Court at Siruguppa by spending Rs.500/- on each date of hearing, as she is not having any source of income. It is well established principles of law that while considering the transfer application of matrimonial cases, the convenience of the wife has to be looked into.

6. The Hon'ble Supreme Court in the case of Sumita Singh Vs. Kumar Sanjay and Another reported in AIR 2002 SC 396, has held that the convenience of the wife has to be looked into at the time of considering the transfer application filed under Section 24 of CPC, which is also relied upon by the co- ordinate Bench of this Court in the case of Suhashini vs. S.B.Mahendra Kumar reported in ILR 2015 KAR 2804.

7. Keeping in view the above said facts and circumstances, the present petition is allowed and M.A.T.No.5/2016 pending on the file of Senior Civil Judge, Siruguppa is hereby withdrawn and same is made over to the Court of Senior Civil Judge and J.M.F.C., Court, Gangavathi, to dispose of the same in accordance with law.

Sd/-

JUDGE yan